

2:00 PM

LINE: 5

25-CIV-04466

MOHAMMAD M KANNA VS. VINDULA RAGHBIR, ET AL

MOHAMMAD M KANNA
VINDULA RAGHBIR

ANDREA DIAZ
STEPHEN E BAUMANN

DEFENDANT GATE GROUP, INC.'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendant Gate Group, Inc.'s demurrer to Plaintiff Mohammad M. Kanna's First Amended Complaint is **OVERRULED IN PART** and **SUSTAINED IN PART WITH LEAVE TO AMEND**.

The demurrer is **OVERRULED** as to the Fourth Cause of Action for failure to engage in the interactive process and the Sixth Cause of Action for wrongful termination in violation of public policy. The demurrer is **SUSTAINED WITH LEAVE TO AMEND** as to the First Cause of Action for disability harassment, Second Cause of Action for disability discrimination, Third Cause of Action for failure to accommodate, and Fifth Cause of Action for failure to prevent harassment, discrimination, or retaliation.

Plaintiff may file and serve a Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

PRELIMINARY MATTERS

The moving notice identified the prior department and hearing location. The matter was later reassigned to Department 2. The opposition and reply identify the correct department and hearing time, and the parties appear to have notice of the current hearing. To the extent the earlier notice contained an incorrect department or location, the Court finds no prejudice requiring the demurrer to be dropped from calendar. (See Cal. Rules of Court, rule 3.1110(b)(1).)

The Court also finds that Defendant substantially complied with Code of Civil Procedure section 430.41. Defense counsel met and conferred with Plaintiff's counsel regarding the original complaint and proposed amended pleading and later sent a further letter addressing the First Amended Complaint. In any event, an insufficient meet-and-confer process is not a ground to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

BACKGROUND

This employment action arises from Plaintiff's former employment with Gate Group, Inc. Plaintiff alleges that, while working as an executive chef, he was struck in the head when a roll-up door in the kitchen area unexpectedly closed. Plaintiff alleges the incident caused a concussion, cervical-spine injuries, and post-traumatic stress disorder. (FAC, ¶¶ 19-21.)

Plaintiff alleges that Defendants' clinic placed him on work restrictions, but Defendants failed to honor the restrictions or participate in a good-faith interactive process, causing him to continue working his normal schedule for several months. Plaintiff's healthcare provider later placed him off work on or about October 12, 2023, and Plaintiff informed Defendants on October 19, 2023. Plaintiff alleges he continued to provide updates thereafter. (FAC, ¶¶ 23-34.)

Plaintiff further alleges that, in or around December 2024, he made a final request to extend his leave of absence through January 29, 2025. (FAC, ¶ 38.) Plaintiff alleges he never sought or required an indefinite leave and fully intended to return to work. (FAC, ¶¶ 39-40.) Defendants denied the request and terminated his employment effective January 8, 2025. (FAC, ¶¶ 43-44.)

Defendant demurs to all six causes of action in the FAC.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the challenged pleading. A demurrer may be sustained where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e); *id.*, §§ 430.30, subd. (a), 430.50, subd. (a).)

For purposes of demurrer, the Court accepts as true all properly pleaded material facts, but not contentions, deductions, or conclusions of law. The Court considers the pleading as a whole and gives it a reasonable interpretation. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *McDonald v. Superior Court* (1986) 180 Cal.App.3d 297, 303-304.)

FIRST CAUSE OF ACTION: DISABILITY HARASSMENT

FEHA prohibits harassment of an employee because of physical disability, mental disability, medical condition, and other protected characteristics. (Gov. Code, § 12940, subd. (j)(1).) To plead FEHA harassment, Plaintiff must allege facts showing that he was subjected to unwelcome conduct because of a protected characteristic and that the conduct was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 627, citing *Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 279.)

The severity of alleged harassment is evaluated from the perspective of a reasonable person in the plaintiff's position and under the totality of the circumstances. (*Bailey, supra*, 16 Cal.5th at p. 629.) A single incident may be sufficient if it unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive work environment. (Gov. Code, § 12923, subd. (b).)

The FAC alleges that Defendants contacted Plaintiff excessively while he was on leave and pressured him to return to work or perform job duties, even though he was on leave and/or required additional leave as an accommodation. (FAC, ¶ 41.) Those allegations are too conclusory to state a harassment claim. The FAC does not allege the frequency of the communications, who made which communications, what was said, when the

communications occurred, how Plaintiff was pressured, or facts showing that the communications conveyed hostility toward Plaintiff because of his disability, medical condition, or leave status.

Personnel-management activity, standing alone, generally does not constitute harassment. (*Reno v. Baird* (1998) 18 Cal.4th 640, 645-647; *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 63-65.) However, personnel-management conduct may be considered in assessing harassment when it communicates a hostile message based on a protected characteristic. (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 709-710.) As pleaded, the FAC does not allege enough facts to show that Defendant's leave-related communications were severe or pervasive harassment, rather than return-to-work or leave-administration communications.

Accordingly, the demurrer to the First Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SECOND CAUSE OF ACTION: DISABILITY DISCRIMINATION

FEHA makes it unlawful for an employer, because of a person's physical disability, mental disability, or medical condition, to discharge the person from employment or discriminate against the person in compensation or in the terms, conditions, or privileges of employment. (Gov. Code, § 12940, subd. (a).) The elements of a disability-discrimination claim are that the plaintiff suffered from a disability or was regarded as suffering from a disability, could perform the essential duties of the job with or without reasonable accommodation, and was subjected to an adverse employment action because of the disability or perceived disability. (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 310; *Green v. State of California* (2007) 42 Cal.4th 254, 262.)

The FAC sufficiently alleges that Plaintiff suffered from a disability or was perceived as disabled and that he was terminated because of his actual or perceived disability. (FAC, ¶¶ 19, 43, 51, 53, 60.) However, the FAC does not allege sufficient facts showing that Plaintiff could perform the essential duties of his executive-chef position, with or without reasonable accommodation, at the relevant time.

The FAC alleges that Plaintiff continued working his normal schedule for a period after the injury, was later placed off work in October 2023, requested an extension of leave through January 29, 2025, was terminated effective January 8, 2025, underwent spinal fusion surgery on or about June 3, 2025, and remains able to work with or without accommodation. (FAC, ¶¶ 27, 29, 38, 43, 47.) Those allegations do not explain whether, when, or how Plaintiff could perform the essential duties of the job between the October 2023 work removal and the January 2025 termination, with or without a reasonable accommodation. The allegation that Plaintiff remains able to work after June 2025 does not fill that pleading gap.

Accordingly, the demurrer to the Second Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

THIRD CAUSE OF ACTION: FAILURE TO ACCOMMODATE

FEHA requires an employer to make reasonable accommodation for the known physical or mental disability of an employee, unless doing so would produce undue hardship. (Gov. Code, § 12940, subd. (m)(1).) A finite leave of absence may be a reasonable accommodation if, after the leave, the employee can return to work with or without further reasonable accommodation and the leave does not impose an undue hardship. (*Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 41-42.) FEHA generally does not require an employer to provide an indefinite leave of absence. (*Atkins v. City of Los Angeles* (2017) 8 Cal.App.5th 696, 721-722.)

Defendant argues that Plaintiff requested an indefinite leave. The FAC does not so allege. It alleges that Plaintiff made a final request to extend his leave through January 29, 2025, and that Plaintiff never sought or required indefinite leave. (FAC, ¶¶ 38-39.) On demurrer, Plaintiff need not rebut Defendant's factual characterization with evidence. (*Fisher, supra*, 214 Cal.App.3d at p. 604.)

The claim is nevertheless insufficiently pleaded for the same reason the disability-discrimination claim is insufficiently pleaded. The FAC does not allege enough facts showing that, after the requested finite leave, Plaintiff would have been able to return to work and perform the essential duties of the job with or without further reasonable accommodation. The FAC's conclusory allegation that Plaintiff intended to return to work is not enough, without supporting facts connecting the requested leave period or another accommodation to his ability to perform the essential job duties.

Accordingly, the demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FOURTH CAUSE OF ACTION: FAILURE TO ENGAGE IN THE INTERACTIVE PROCESS

FEHA requires an employer to engage in a timely, good-faith interactive process with an employee to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee with a known physical or mental disability or known medical condition. (Gov. Code, § 12940, subd. (n).) No magic words are required, and the obligation arises once the employer becomes aware of the need to consider an accommodation. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1013.)

The FAC alleges that Plaintiff reported the work injury, went to Defendants' clinic, received restrictions, informed Defendants that he was placed off work, provided updates, and later requested an extension of his leave through January 29, 2025. (FAC, ¶¶ 20-22, 24-26, 33-34, 38.) These allegations sufficiently plead that Defendant knew of Plaintiff's disability and need for accommodation and that Plaintiff initiated or continued the interactive process.

The FAC further alleges that Defendant failed to explore or identify other potential accommodations that would allow Plaintiff to return to work and instead terminated his employment effective January 8, 2025. (FAC, ¶¶ 43-44.) Defendant argues that it participated in the interactive process over time. That argument may be developed factually later, but it does not defeat the claim on demurrer. The employer's duty to participate in good faith is continuing, particularly when the employee requests a different accommodation or the employer is aware that the initial accommodation is failing and further accommodation may be needed. (*Scotch, supra*, 173 Cal.App.4th at p. 1013.)

Accordingly, the demurrer to the Fourth Cause of Action is **OVERRULED**.

FIFTH CAUSE OF ACTION: FAILURE TO PREVENT HARASSMENT, DISCRIMINATION, OR RETALIATION

FEHA makes it unlawful for an employer to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring. (Gov. Code, § 12940, subd. (k).) A failure-to-prevent claim is derivative of an underlying claim of discrimination, harassment, or retaliation. (See *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 288-289.)

The FAC alleges that, once Defendants were aware of harassment and discrimination, they failed to take appropriate measures to prevent further harassment, discrimination, and retaliation. (FAC, ¶ 80.) However,

for the reasons stated above, the harassment and discrimination claims are insufficiently pleaded. The FAC does not separately plead a retaliation cause of action or facts supporting a distinct retaliation theory. The failure-to-prevent claim is therefore insufficiently pleaded as derivative of the insufficiently pleaded harassment and discrimination claims.

Accordingly, the demurrer to the Fifth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SIXTH CAUSE OF ACTION: WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY

To state a claim for wrongful termination in violation of public policy, a plaintiff must allege that the employer terminated the plaintiff's employment in violation of a public policy affecting society at large, that is substantial, fundamental, and grounded in a statutory or constitutional provision. (*Holmes v. General Dynamics Corp.* (1993) 17 Cal.App.4th 1418, 1426; *Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 889-890.)

The FAC alleges that Plaintiff requested continued medical leave through January 29, 2025, participated in the accommodation process, did not request indefinite leave, and was terminated effective January 8, 2025 because of his actual or perceived disability and/or because Defendant failed to engage in the legally required interactive process. (FAC, ¶¶ 38-45.) FEHA embodies substantial and fundamental public policies against disability discrimination and in favor of reasonable accommodation and the interactive process. At the pleading stage, these allegations are sufficient to state a wrongful-termination claim based on FEHA-related public policies, even though other statutory FEHA claims require amendment to plead additional element-specific facts.

Accordingly, the demurrer to the Sixth Cause of Action is **OVERRULED**.

DISPOSITION

Defendant Gate Group, Inc.'s demurrer is **OVERRULED** as to the Fourth and Sixth Causes of Action and **SUSTAINED WITH LEAVE TO AMEND** as to the First, Second, Third, and Fifth Causes of Action.

Plaintiff may file and serve a Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant Gate Group, Inc. shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 6

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VINDULA RAGHBIR

ANDREA DIAZ
STEPHEN E BAUMANN

DEFENDANT DAVID POTTS'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendant David Potts's demurrer to the First Cause of Action for disability harassment in Plaintiff Mohammad M. Kanna's First Amended Complaint ("FAC") is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff may file and serve a Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

BACKGROUND

This action arises out of Plaintiff's former employment with Defendant Gate Group, Inc. Plaintiff alleges he sustained a work-related head injury on June 26, 2023, when a roll-up door unexpectedly closed and struck him. Plaintiff alleges he reported the incident to several individuals, including Defendant David Potts. (FAC, ¶ 21.)

Plaintiff further alleges he was diagnosed with a concussion, received work restrictions, later remained off work from October 2023 through July 2024, and eventually learned he had sustained cervical-spine injuries from the incident. In December 2024, Plaintiff requested an extension of his leave of absence. Defendants denied the request and terminated his employment on January 8, 2025.

The FAC asserts six causes of action against Gate Group. Only the First Cause of Action for disability harassment under the Fair Employment and Housing Act ("FEHA") is asserted against Potts. Plaintiff alleges that Potts, along with Defendants Vindula Raghbir, Hardev Guru, and Alice Warrick, harassed Plaintiff by contacting him excessively while he was on leave and pressuring him to return to work or perform job duties, even though he was on leave and/or required additional leave as an accommodation. (FAC, ¶ 41.)

PRELIMINARY MATTERS

The moving notice identified the prior department and hearing location. The matter was later reassigned to Department 2. The opposition and reply identify the correct department and hearing time, and the parties appear to have notice of the current hearing. To the extent the earlier notice contained an incorrect department or location, the Court finds no prejudice requiring the demurrer to be dropped from calendar. (See Cal. Rules of Court, rule 3.1110(b)(1).)